



CHAPTER cxlix.

An Act to authorise new gasworks and remove the existing works to acquire lands for public improvements to provide a pump room and baths and generally to confer further powers on the Urban District Council of Matlock Bath and Scarthin Nick in regard to the local government of their district. A.D. 1905.
[4th August, 1905.]

WHEREAS the urban district of Matlock Bath and Scarthin Nick in the county of Derby (in this Act called "the district") is under the local government of the Urban District Council of Matlock Bath and Scarthin Nick (in this Act called "the Council"):

And whereas the Council are the owners of the gasworks which supply the larger portion of the district and portions of the urban district of Matlock and the parish of Cromford with gas and the parish of Bonsall is also within the gas limits of the Council:

And whereas the Council are the owners of the waterworks which supply the district with water:

And whereas by the Matlock Bath Gas Act 1896 it was provided that the Council should within seven years from the first January one thousand eight hundred and ninety-seven being the date of the transfer to them of the gas undertaking which by that Act they were authorised to acquire remove the existing gasworks from the lands on which the same were at the said date erected to some place or places without the urban district of Matlock:

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And whereas it is expedient that the Council should be authorised to erect new gasworks and that the time within which the existing gasworks should be removed should be extended and that further powers should be conferred upon the Council with reference to their gas and water undertakings :

And whereas the Council have acquired certain interests in lands along the banks of the River Derwent within the district and have laid out such lands as public walks and recreation grounds and the same have proved a great attraction to the district and it is expedient that the Council should be empowered to acquire the freehold interest in such lands and also to acquire further lands for such purposes :

And whereas the Council have been and will be put to large expense in laying out and in maintaining the public walks river banks and recreation grounds aforesaid and it is necessary that the Council should be empowered to make a charge on visitors and others for the use of the same :

And whereas it is expedient that powers should be conferred upon the Council to enable them to provide a pump room and baths upon lands to be acquired by the Council and to supply natural mineral water and provide all kinds of medicinal or thermal baths and charge for the same and in connexion therewith to provide concert rooms bands shelters and other conveniences :

And whereas an agreement has been made with the proprietors of the Royal Hotel Matlock Bath whereby the Council will become entitled to a large and valuable supply of the thermal water flowing from the grotto spring known as the Royal Well subject to terms and conditions which will result largely to the benefit advantage and prosperity of the district and it is expedient that the same should be confirmed :

And whereas it is expedient that further and better provision be made with reference to buildings streets and sewers and for the improvement local government rating and finance of the district and that the powers of the Council in relation thereto should be enlarged and extended :

And whereas it is expedient that the other provisions of this Act should be made :

And whereas estimates have been prepared by the Council for the purchase of lands for and for the execution of the

several works by this Act authorised and such estimates are A.D. 1905.
as follows:—

	£
For gasworks and other works and lands in connexion therewith - - - - -	10,000
For the pump room and thermal baths and for other buildings and lands connected therewith	15,000
For lands for recreation ground purposes - - - - -	2,500

And whereas it is expedient that the Council should be authorised to borrow the sums required for the purposes of this Act and that repayment thereof should be spread over terms of years:

And whereas plans showing the lands which may be taken for the purposes of this Act and also books of reference to the plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands which may be taken for the purposes or under the powers of this Act have been duly deposited with the clerk of the peace for the county of Derby and are herein-after respectively referred to as the deposited plans and books of reference:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas an absolute majority of the whole number of the Council at a meeting held on the ninth day of December one thousand nine hundred and four after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Derbyshire Times a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that it was expedient to promote the Bill for this Act:

And whereas such resolution was published twice in the Derbyshire Times a local newspaper circulating in the district and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twentieth day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed:

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—

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Matlock Bath Improvement Act 1905.

Act divided
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Gas.

Part III.—Lands.

Part IV.—Pump Room and Thermal Baths.

Part V.—Recreation Grounds.

Part VI.—Buildings.

Part VII.—Sewers.

Part VIII.—Hoardings and Sky Signs.

Part IX.—Sanitary Provisions.

Part X.—Police.

Part XI.—Finance.

Part XII.—Miscellaneous.

Interpreta-
tion

3. In this Act the following words and expressions have the meanings hereby assigned unless the subject or context otherwise requires:—

“The district” means the urban district of Matlock Bath and Scarthin Nick in the county of Derby;

“The Council” means the urban district council of the district;

“District fund” and “general district rate” mean respectively the district fund and general district rate of the district;

“The clerk” “the surveyor” “the medical officer” “the inspector of nuisances” mean respectively the clerk and the surveyor to the Council and the medical officer of health and inspector of nuisances of the district and include any person duly authorised to act temporarily

in those capacities respectively and "the office" in relation to any of the said officers means the office of that officer at the Council offices or at any such other place in the district as the Council may from time to time appoint; A.D. 1905.

"The Act of 1896" means the Matlock Bath Gas Act 1896;

"Daily penalty" means a penalty for each day on which an offence is continued after conviction;

"Sky sign" means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support. The expression "sky sign" also includes any balloon parachute or similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

(1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purposes of any advertisement or announcement;

(2) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof. Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported;

(3) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place;

A.D. 1905.

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council.

Words and expressions to which meanings are assigned by the Public Health Acts have in this Act the same respective meanings.

Incorporation of Acts.

4. The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 are hereby incorporated with this Act.

PART II.

GAS.

Extension of time for removal of gasworks.

5. The time limited by section 14 (For protection of Matlock Urban District Council) of the Act of 1896 for the removal of the existing gasworks and the erection thereof upon other lands is hereby revived, and extended for a period of seven years from the passing of this Act and the Council at any time prior to the expiration of that period may if they think fit remove and re-erect the said gasworks to and upon the lands described in Part II. of the schedule to the Act of 1896 and in the schedule to the agreement set forth in the First Schedule to this Act and in the event of the Council not removing the said gasworks within such period as aforesaid they shall pay to the Matlock Urban District Council a daily penalty not exceeding five pounds until such removal.

Confirming Agreement with Frederic Charles Arkwright.

6. The agreement dated the tenth day of May one thousand nine hundred and five and made between Frederic Charles Arkwright of the one part and the Council of the other part as set forth in the First Schedule to this Act is hereby confirmed and made binding upon the parties.

Council and Railway Companies

7. The Council and the London and North Western and the Midland Railway Companies may respectively enter into

and fulfil contracts and agreements for or in relation to the construction or provision of railway sidings into the gasworks of the Council and the making of a platform or landing place on the canal at Cromford in connexion with the gasworks and also with regard to the use management and maintenance of the same when constructed or provided.

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may agree as to construction of sidings.

8. Any meters slot-meters or gas fittings let for hire by the Council shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such meters slot-meters or fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Gas fittings not to be subject to distress.

9. The prescribed number of candles shall be fifteen and section 25 of the Act of 1896 is hereby repealed.

Quality of gas.

10. The Council may upon the application of the owner or occupier of any premises within the gas limits abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes in streets not dedicated to public use.

11. The Council may lay down place repair alter remove and renew mains pipes and culverts within the gas limits for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to utilise pipes for ancillary purposes.

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No penalty
in case of
unavoidable
cause.

12. No penalty shall be incurred by the Council for neglect or refusal to give a supply of gas or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognisance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Council or was of so slight or unimportant a character as not materially to affect the value of the supply.

Power to
hold licences
under letters
patent.

13. The Council may take hold and use within the gas limits patent rights or licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture production conversion utilisation or distribution of gas or of any materials or substance whether solid liquid or gaseous employed in or resulting from or otherwise connected with the manufacture production conversion utilisation or distribution of gas.

Notice to
discontinue
supply of
gas.

14. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Period of
error in de-
fectivemeter.

15. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Council.

Application
of provisions
of Act of
1896.

16. The gasworks by this Act authorised shall form part of the gas undertaking of the Council and the provisions of the Act of 1896 so far as the same are applicable in that behalf and are not inconsistent with the provisions of this Act shall extend and apply mutatis mutandis to and in relation to the gasworks by this Act authorised.

PART III.

A.D. 1905.

LANDS.

17. Subject to the provisions and for the purposes of this Act the Council may enter upon take and use all or any of the lands delineated on sheets 1 and 2 of the deposited plans and described in the deposited book of reference.

Power to acquire lands.

18. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Council after giving ten days' notice to the owners lessees or occupiers of the lands in question may apply to two justices not being members of the Council for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Derby and a duplicate thereof shall also be deposited with the clerk of the Council and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk of the Council respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Correction of errors &c. in deposited plans and books of reference.

A copy of or an extract from such certificate purporting to be under the hand of the clerk of the peace aforesaid (which copy or extract shall be given when required under his hand to any person interested) shall be conclusive evidence of such correction.

19. The powers of the Council for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

20. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or

Persons under disability may grant easements &c.

A.D. 1905. — privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Lands acquired for some purposes of Public Health Act 1875 may be used for others.

21. Notwithstanding anything in section 175 of the Public Health Act 1875 any lands acquired by the Council in pursuance of any powers in that Act contained and not required for the purpose for which they were acquired may with the approval of and subject to such conditions as may be imposed by the Local Government Board be retained and used by the Council for any other purpose in like manner as if they had been originally acquired for such last-mentioned purpose.

Power to retain sell &c. lands.

22. Notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit and may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or interest in any lands acquired by them under this Act and not required for the purpose for which they were acquired and may sell and exchange and dispose of any rent reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Application of moneys from sale of lands.

23. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands and premises by this Act authorised to be acquired or by way of fine or premium on any lease of any such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council Provided that such proceeds when used to pay off the borrowed moneys shall not be applicable to the payment of instalments appropriations or

[5 EDW. 7.] *Matlock Bath Improvement Act, 1905.* [Ch. cxlix.]

annual repayments or to payments into sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. A.D. 1905.

PART IV.

PUMP ROOM AND THERMAL BATHS.

24. The Council may upon the lands acquired by them under the powers of this Act for such purpose erect and equip with all necessary pumps fountains pipes fittings apparatus conveniences and works and otherwise furnish and maintain a pump room for utilising the thermal waters of the grotto spring known as the Royal Well and in connexion therewith may erect baths pavilions conservatories waiting refreshment concert assembly or reading rooms museums and other buildings and conveniences suitable to or adapted for the said purpose together with such gardens or pleasure grounds as may be deemed necessary or desirable in the interests of the public resorting to the said pump room or baths. Erection of pump room and baths.

25. The agreement dated the fifth May one thousand nine hundred and five and made between Leolin Brigg of the first part Carlos Vetter of the second part the Hydro Hotels Syndicate Limited of the third part and the Council of the fourth part as set forth in the Second Schedule to this Act is confirmed and made binding upon the parties thereto. Confirming agreement with Hydro Hotels Syndicate Limited.

26. The Council may make such charges as they think fit for admission to and the use of the pump room and the baths walks gardens pavilions conservatories waiting and other rooms connected therewith and for the consumption by persons frequenting the same of the waters supplied thereto. Power to charge for admission to pump room.

27. The Council may grant or let with or without charge the use of the pump room or of any hall conservatory pavilion or other building or room connected with or adjoining the same for the purpose of any public or other meeting concert or entertainment or other purpose approved by them. Power to let pump rooms for concerts &c.

28. The Council may after the transfer and subject as aforesaid make byelaws for the regulation and management of the Pump Room Baths and any other premises acquired or provided by the Council under the powers of this Act and for regulating the admission thereto and the user thereof and respecting the conduct of persons therein. Byelaws.

A.D. 1905.

PART V.

RECREATION GROUNDS.

Power to
enlarge
recreation
grounds.

29.—(1) The Council may appropriate any of the lands which they are by this Act authorised to take or acquire for purposes other than gas for the enlargement and improvement of their recreation grounds and they may extend alter and improve the existing walks along the banks of the River Derwent and may make and lay down other walks and pleasure grounds along the said banks and may also exercise the like powers in respect to other public walks within the district.

(2) The Council may charge such reasonable sums (not exceeding twopence for each person) for the admission of visitors to the district to any of their recreation grounds and the walks aforesaid as they may think fit and the Council may also close the same to the public on any days not exceeding six in the year and not being Sundays or public holidays and in the application of section 44 of the Public Health Acts Amendment Act 1890 to such recreation grounds and walks the words "six days" shall be deemed to be substituted for the words "twelve days" in that section mentioned.

Council may
provide shel-
ters and other
buildings.

30. The Council may in any recreation ground or on the river bank erect provide maintain furnish and equip any shelters kiosks boathouses and such other buildings which may be required or convenient for the purposes of such recreation ground and the public resorting thereto and may charge for admission to such buildings or any of them or in respect of the use thereof or of any part or parts thereof respectively.

Power to let
buildings or
provide en-
tertainments
therein.

31. The Council may in any such buildings for the time being belonging to them or under their control in any recreation ground or upon the river banks aforesaid provide and carry on or arrange for the provision or carrying on of suitable entertainments exhibitions or amusements upon such terms and conditions as they may think fit or may let the same for particular entertainments or exhibitions or for public meetings.

Seats and
chairs may
be provided.

32. The Council may place or authorise any person or persons to place shelters seats or chairs for the use of the public in any street park recreation ground or other public place and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make

byelaws for regulating the use of the shelters seats and chairs and for preventing injury or damage thereto. A.D. 1905.

33. The Council may set apart any portion of any recreation ground for cricket bowls football lawn tennis and other games and for the drill of volunteers yeomanry or cadets or of any military or police force or for the delivery of speeches or the holding of meetings of public or local interest and may make an agreement with any club or association by which such portion of the recreation ground may be secured to the club or association for a period not exceeding three months but so that the same shall be open to the public when not in use for such games or drill or other purposes and the Council may make byelaws for regulating the use of the recreation ground so set apart.

Power to set apart portions of recreation grounds for games.

34. The Council may provide apparatus for games and recreation for the use of the public frequenting the public parks gardens and recreation grounds and may charge for the use thereof and they may lease or grant for any term not exceeding three years the right of providing and charging for such apparatus upon such terms and conditions as they may think proper and the Council may make regulations with respect to the use and payment for the use of such apparatus.

Power to provide apparatus for games.

35. The Council may pay or contribute towards the payment of a public band of music for the district provided that the amount of such payments or contributions does not in any year exceed a sum equal to a rate of one penny in the pound on the assessable value of the district for the purposes of the general district rate The Council may in any recreation ground or other public place enclose an area within which such band shall play and make regulations as to the time and place for the playing of the band and the payment to be made for admission within the said enclosure and for securing good and orderly conduct during the playing of the band.

Power to contribute towards band.

36. The Council may appoint officers for securing the observance of this Part of this Act and of the regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

Power to appoint officers.

37. Any place of public resort or recreation ground belonging to or under the control of the Council and any unfenced ground adjoining or abutting upon any street shall for

Extending definition of public place and street

A.D. 1905.
—
for certain
purposes.

the purposes of the Vagrancy Act 1824 and of any Act for the time being in force altering or amending the same be deemed to be an open and public place and shall be deemed to be a street for the purposes of section 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences:—

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal:

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle:

Every common prostitute or night walker loitering and importuning passengers for the purpose of prostitution:

Every person who wilfully and indecently exposes his person:

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language:

Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire:

Every person who throws or lays any dirt litter ashes or night soil or any carrion fish offal or rubbish on any street.

Expenses and
application
of moneys
received
under this
Part of Act.

38. All expenses incurred by the Council in the exercise of the powers of this Part of this Act shall be paid out of the district fund and any moneys received by the Council in connexion with the execution of the purposes of this Part of this Act shall be carried to the credit of the district fund.

PART VI.

BUILDINGS.

What to be
deemed new
buildings.

39. From and after the passing of this Act—

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation;

The conversion of a building which when originally erected was legally exempt from the operation of any building

byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

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The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house ;

The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only ; and

The roofing or covering over of any open space between walls and buildings ;

shall for all the purposes of this Act and of the Public Health Acts and of any byelaw made thereunder respectively be deemed to be the erection of a new building.

40. All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Council becomes front land shall be erected according to such elevation as the Council approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a drawing approved by the Council and in case the Council for the space of six weeks after any plan of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Council shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

Elevation of buildings erected on front lands to be subject to approval of Council.

41. In case any building is after the passing of this Act erected or raised to a greater height than that of any adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected

Erection of buildings to greater height than adjoining buildings.

A.D. 1905. or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Height of
buildings.

42. No new building shall without the approval of the Council be erected on the side of any street which shall exceed in height the distance from the front of such building to the opposite side of such street nor shall the height of any building at any time erected on the side of any street be at any time subsequently increased without such approval as aforesaid so as to exceed such distance Provided that the approval of the Council shall not in the case of rebuilding any building existing at the passing of this Act be withheld so as to involve a material sacrifice of property In determining the height of any building the measurement shall be taken from the level of the centre of the street immediately opposite the centre of the front of the building up to the top of the parapet or to the eaves of the roof as the case may be In the case of a gable facing the street the measurement shall be to a point half way between the level of the eaves and the ridge In the case of a roof which slopes away from the street at any greater angle to the horizon than fifty degrees the measurement shall be to the ridge of the roof and not to the eaves :

Provided that where any new building shall front to two or more streets the height of such new building shall be determined according to the width of the widest of such streets.

Height of
chimneys.

43. With respect to the height of chimneys the following provisions shall have effect (that is to say) :—

- (1) Every chimney hereafter erected for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any mill factory brewery sizing-house dye-house corn-mill foundry or building used for manufacturing or other purposes shall be raised to such height measured from the level of the centre of the street nearest thereto as the Council shall reasonably approve having regard to the use of such chimney the position of dwelling-houses or other buildings near thereto the description

of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height: A.D. 1905.

- (2) Any person who shall offend against any provision of this or the preceding section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

44. Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel boarding-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto. Means of escape from buildings in case of fire.

Nothing in this section contained shall be deemed to interfere with the operations of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

PART VII.

SEWERS.

45. Where under the provisions of the Public Health Acts the Council have the power to require any street to be sewered by reason of such street not having theretofore been sewered to their satisfaction they may require the provision of separate sewers for the reception of surface water and of sewage respectively. The Council (if such separate sewers have been provided) may from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for sewage only and where in any street provision has been made for separate sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewer. Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds Separate sewers.

A.D. 1905. — and to a daily penalty not exceeding forty shillings Provided that in the case of any house or premises existing at the time of the provision of separate sewers as aforesaid the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such house or premises the Council shall at their own expense make all necessary alterations to the drain and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and pending any such alteration the said penalty shall not apply.

Council may require enlarged sewer.

46. If in any new street the Council for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Council and the additional cost thereof shall be paid by the Council.

Council may order houses to be drained by a combined operation.

47. If it appear to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners summarily as a civil debt Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council.

Amendment of section 19 of Public Health Acts Amendment Act 1890.

48. The powers given in section 19 (extension of 38 & 39 Vict. c. 55. s. 41) of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

PART VIII.

A.D. 1905.

HOARDINGS AND SKY SIGNS.

49.—(1) Every hoarding or similar structure in or abutting on or adjoining any street or so near to any street that it might if not supported fall thereon shall be securely erected and maintained.

Provisions
as to hoard-
ings and
other struc-
tures used
for adver-
tising pur-
poses.

(2) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any such hoarding or similar structure to a greater height than twelve feet above the level of such street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the maintenance of such hoarding or similar structure as the Council may determine.

(3) The owner or other person using any such hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent given or condition made under this section may be under the hand of the clerk or the surveyor.

(6) Any person aggrieved by the refusal of the Council to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable summarily as a civil debt.

A.D. 1905.

Sky signs.

50.—(1) It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Council and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed:

Provided that in any of the following cases a licence of the Council under this subsection shall become void namely:—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor;
- (ii) If any change be made in the sky sign or any part thereof;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof; or
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed:

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Council to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequences as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 (Future projections of houses &c. to be removed on notice) of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

PART IX.

A.D. 1905.

SANITARY PROVISIONS.

51. No pipe used for the carrying off of rain water from any roof shall be used for the purpose of carrying off the soil or drainage from any privy or watercloset. Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Rain-water pipes not to be used as soil pipes.

52. No water pipe stack pipe or down spout in existence at the date of the passing of this Act used for conveying surface water from any premises shall be used or be permitted to serve or to act as a ventilating shaft to any drain. Any person who shall offend against this section after fourteen days from the service upon him by the Council of notice of such offence shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Water or stack pipes not to be used as ventilating shafts.

53. The soil pipes of the waterclosets within houses and buildings shall be properly ventilated by means of a pipe carried up therefrom or by such other method as the Council shall direct and any owner or occupier of a house or building who shall neglect or fail to comply with any requirement of the Council under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Soil pipes to be ventilated.

54. The Council may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron or enamelled iron dustbins in lieu of ashpits and such dust bins shall be of such size and construction as may be approved by the Council and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dustbins or ashpits in use at the passing of this Act so long as the same are of suitable size and in proper order and condition.

Regulation dustbins.

55. If any trade refuse or any building materials or other materials or rubbish of a like description be deposited in any dustbin the Council may make a reasonable charge for the

Charge for removing trade refuse.

A.D. 1905. removal of the same which charge shall be paid to the Council by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt.

Cleansing of cisterns.

56. The Council may make byelaws for securing the cleanliness and freedom from pollution of tanks cisterns and other receptacles kept for storing water used or likely to be used by man for drinking or domestic purposes or for manufacturing drink for the use of man.

Council may require removal or alterations of urinals.

57. If any urinal or other sanitary convenience now or hereafter opening on any street shall be so placed or constructed as to be a nuisance or offensive to public decency the Council by notice in writing may require the owner to remove such urinal or convenience or otherwise to reconstruct the same in such a manner and with such materials as may be required to abate the nuisance and remove the offence against public decency Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Public drinking fountains.

58. The Council may put up continue remove or discontinue drinking fountains and cattle troughs with proper conveniences for the gratuitous supply of water for drinking and for watering cattle and horses at such fountains or troughs respectively and may furnish or discontinue such gratuitous supply (but for such drinking and watering only) in such public places as the Council may think fit and every person who shall wilfully use any water so gratuitously supplied elsewhere or otherwise than as herein-before mentioned or foul such water shall for every such offence be liable to a penalty not exceeding forty shillings.

PART X.

POLICE.

Power to license persons following certain callings.

59.—(1) The Council may grant to any person they think fit a licence to carry on the calling of porter messenger or commissionaire and may charge a fee of one shilling for every such licence.

(2) Any licence issued by the Council under this section may be granted for a year or for any less period as the Council may think fit and may be suspended or revoked or endorsed by

the Council whenever they shall deem such suspension revocation or endorsement to be necessary or desirable in the interests of the public. Provided that the existence of this power to suspend revoke or endorse a licence shall be plainly set forth in the licence itself. A.D. 1905.

(3) Every such licence whensoever issued shall expire on the first of January next following the date of its issue and may contain conditions as to the badge which the holder of any such licence shall wear.

(4) If any person feels himself aggrieved by the suspension or revocation of his licence he may appeal to a court of summary jurisdiction and such court may either confirm or annul such suspension or revocation or make such order in the matter as shall appear expedient.

(5) If any person while unlicensed represents himself to be licensed or wears any badge for the purpose of holding himself out as licensed to carry on any of the callings specified in this section he shall be liable to a penalty not exceeding twenty shillings.

PART XI.

FINANCE.

60. The Council may from time to time independently of any other borrowing power borrow at interest on the following securities any sums not exceeding the following (that is to say):— Power to borrow.

(A) On security of the district fund and general district rate—

For paying the costs charges and expenses of and in relation to this Act as herein-after provided the sum requisite for the purpose:

(B) On security of the revenue of the gas undertaking of the Council and the district fund and general district rate—

For the purchase of lands and erection of gas-works the sum of ten thousand pounds:

(C) On security of the district fund and general district rate—

For the purchase of lands and the erection and equipment of the pump room and baths and other

A.D. 1905.

buildings in connexion therewith the sum of fifteen thousand pounds;

For the purchase of lands for and laying out recreation grounds and walks the sum of two thousand five hundred pounds :

And the Council may also with the approval of the Local Government Board borrow on security of the district fund and general district rate such sums as the Council may require for any of the purposes of this Act.

In calculating the sums which the Council may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Council as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts.

Mode of
raising
money.

61. The Council may raise all or any moneys which they are authorised to borrow under this Act either by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act whereof the marginal note is "Sinking fund" shall apply in lieu of the provisions of sections 15 and 16 of the Local Loans Act 1875.

Provisions
as to mort-
gages.

62. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to and in relation to all mortgages made under the powers of this Act (that is to say) :—

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages); and

Section 239 (Receiver may be appointed in certain cases).

Periods for
payment off
of money
borrowed.

63. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say) :—

As to moneys borrowed for the purpose (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within five years from the passing of this Act :

As to moneys borrowed for the purposes (B) in the said section mentioned within forty years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes (c) in the said section mentioned within fifty years from the date or dates of borrowing the same: A.D. 1905.

As to further moneys borrowed with the approval of the Local Government Board under the powers of this Act (including moneys so borrowed under the provisions of the section of this Act the marginal note whereof is "Scheme for fixing equated periods for repayment of loans") within such periods as that Board may prescribe.

64. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made. Mode of payment off of money borrowed.

65.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either— Sinking fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking so formed is herein-after called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

A.D. 1905.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

A.D. 1905.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

66. If the Council out of the proceeds of the sale or disposition of lands or other moneys received on capital account repay any principal moneys borrowed under the powers of this Act the payments to any sinking fund applicable to the repayment of such principal moneys may be reduced to such extent and upon such terms as may from time to time be approved by the Local Government Board.

Sinking fund may be adjusted in certain events.

67.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be

Return to Local Government Board as to repayment of debt.

A.D. 1905. — prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to
re-borrow.

68. The Council may except as herein-after provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow Provided that the Council shall

[5 EDW. 7.] *Matlock Bath Improvement Act, 1905.* [Ch. cxlix.]

not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be re-paid within the prescribed period. A.D. 1905.

69. A person lending money to the Council shall not be bound to inquire as to the observance by the Council of any provision of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent by him or of any part thereof. Protection
of lenders
from inquiry.

70. Nothing in this Act shall prejudicially affect any charge on the revenue rates estates or property of the Council subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the revenue rate and property subject to his charge as if this Act had not passed. Saving for
existing
charges.

71. The Council shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register or books of the Council shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money. Council not
to regard
trusts.

72. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are respectively authorised to be borrowed and to which capital is properly applicable. Application
of borrowed
moneys.

A.D. 1905.

Scheme
for fixing
equated
periods for
repayment
of loans.

73.—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans then contracted or about to be contracted by them under statutory borrowing powers (including the loans authorised by this Act) shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act. Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme except with the consent of such mortgagee.

(3) The Council may with the sanction of the Local Government Board borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Expenses of
execution
of Act.

74. All expenses incurred by the Council in carrying into execution the provisions of this Act except such of them as are properly chargeable to capital and payable out of borrowed moneys shall be paid out of the district fund or general district rate.

PART XII.

MISCELLANEOUS.

In executing
works for
owner Coun-
cil not liable
for damages
save in case
of negli-
gence.

75. Whenever the Council under any enactment or bye-law for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent

upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly. A.D. 1905.

76.—(1) The Council may if they think fit grant a gratuity of any sum not exceeding one year's pay to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service. Power to grant gratuities in certain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

77. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act. General provisions as to byelaws.

78. Save as expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk. Informations &c. by whom to be laid.

79. Where any notice or demand under this Act requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business. Authentication and service of notices &c.

80. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by Appeal.

A.D. 1905. any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Council may in like manner appeal.

Recovery of penalties.

81. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as a civil debt.

Damages and charges to be settled by justices.

82. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom the offender is convicted.

Penalties to be paid over to treasurer.

83. All penalties recovered by the Council or any officer of the Council on their behalf under this Act or any byelaw thereunder shall be paid to the treasurer and carried by him to the credit of the district fund or to such other fund as the Council direct.

Compensation to be determined under Public Health Acts.

84. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method of determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts.

Compensation may be in land.

85. The Council when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent.

Inquiries by Local Government Board.

86.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes

of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. A.D. 1905.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

87. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or of the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments &c.

88. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that no person shall be punished more than once for the same offence. Saving for indictments.

89. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them by the Public Health Acts or any of them and the Council may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence. Powers of Act cumulative.

90. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Crown rights.

A.D. 1905.

Costs of
Act.

91. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act and the costs charges and expenses preliminary to and of and connected with the obtaining of the resolution of electors aforesaid shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of the district fund or general district rate.

The SCHEDULES referred to in the foregoing Act.

A.D. 1905.

THE FIRST SCHEDULE.

MEMORANDUM OF AGREEMENT made the Tenth day of May One thousand nine hundred and five between FREDERIC CHARLES ARKWRIGHT of Willemsley in the County of Derby Esquire of the one part and THE MATLOCK BATH AND SCARTHIN NICK URBAN DISTRICT COUNCIL (herein-after called "the Council") of the other part whereby it is mutually agreed as follows :—

1. Frederic Charles Arkwright shall sell and the Council shall purchase for a sum to be hereafter agreed upon (and failing agreement ascertained by arbitration subject to the provisions of the Arbitration Act 1889) as much as the Council may require of the piece of ground described in the schedule hereto and delineated on the plan hereto annexed and therein distinguished by a pink colour.

2. If less than the whole of the land coloured pink on the said plan shall be required by the Council the part not taken by the Council shall be the west end of the said piece of land and the conveyance shall contain covenants restricting the use of the land taken to gas purposes the erection of cottages for the workmen of the Council and the erection of a destructor or destructors.

3. The Council shall at their own expense construct and for ever hereafter maintain a good substantial and unclimbable fence between the land taken by the Council under this agreement and the property of the said Frederic Charles Arkwright adjoining it on the west.

4. The land is sold subject to all yearly tenants claims quit rents tithe rentcharge land tax rights of way and other easements and to all local charges and outgoings whatsoever if any.

5. The Council shall assume that the land agreed to be sold is vested in the said Frederic Charles Arkwright for an estate of inheritance in fee simple in possession free from incumbrances.

6. The general conditions of sale of the Sheffield District Incorporated Law Society so far as they are not inconsistent with the other clauses of this agreement and so far as they are applicable to a sale by private treaty shall be incorporated with this agreement.

7. The Council may take possession of the land agreed to be sold at any time within five years from the date of this agreement and the purchase money shall be payable on the day when such possession is taken and if possession shall not be taken by the Council within five years from the date hereof the agreement shall be cancelled.

A.D. 1905.

8. If from any cause whatsoever the said Bill shall not receive the Royal Assent this agreement shall become null and void and cease to be binding either upon the Council or upon Frederic Charles Arkwright.

9. This agreement is made subject to the approval of Parliament and to any alterations which either of the Houses of Parliament may think fit to make herein.

As witness the hand of the said Frederic Charles Arkwright and the seal of the Council.

The common seal of the above-named Urban District Council was hereunto affixed in pursuance of a resolution duly passed by the Council in the presence of

FREDERIC C. ARKWRIGHT.



H. BUXTON Vice-Chairman.

F. C. LYMN Clerk.

The SCHEDULE referred to.

A piece of land in the township of Cromford in the county of Derby lying between the high road from Cromford to Derby and the Cromford Canal having an area of five acres and one half of an acre or thereabouts which piece of land is delineated on the plan hereto annexed and therein distinguished by a pink colour.

THE SECOND SCHEDULE.

AGREEMENT made the Fifth day of May One thousand nine hundred and five between LEOLIN BRIGG of Guard House in the Borough of Keighley in the County of York Gentleman of the first part CARLOS VETTER of 69 and 70 Mark Lane in the City of London Merchant of the second part THE HYDRO HOTELS SYNDICATE LIMITED whose registered office is at 69 and 70 Mark Lane in the City of London (herein-after called "the Company") of the third part and the URBAN DISTRICT COUNCIL OF THE URBAN DISTRICT OF MATLOCK BATH AND SCARTHIN NICK in the County of Derby (herein-after respectively called "the Council" and "the District") of the fourth part.

WHEREAS the Council in the present session of Parliament are promoting a Bill for an Act the short title whereof is "The Matlock Bath Improvement

Bill 1905" (herein-after called "the Bill") to authorise new gasworks and remove the existing works to acquire lands for public improvements to provide a pump room and baths and generally to confer further powers on the Council in regard to the local government of the district : A.D. 1905.

And whereas the Company were incorporated on the 30th day of March 1904 under the Companies Acts 1862 to 1900 with the objects inter alia of carrying on the business of hotel proprietors at Matlock Bath aforesaid :

And whereas it has been represented to the Council by the Company and other owners residing and interested in the district that it would be to the interest benefit and advantage of the district and would promote the improvement and development thereof as an inland health resort if the thermal waters of certain springs now belonging to the Company and being of great medicinal value were to be utilised and made available for the purposes of public thermal and mineral baths :

And whereas the Company as the Proprietors of the Royal Hotel and Hydro at Matlock Bath and of the said thermal and mineral springs are desirous for the benefit advantage and improvement as aforesaid to assist the Council to utilise and make available for the said purposes the said thermal and mineral waters and have expressed their willingness subject to the considerations herein-after set forth so to do :

And whereas the Company with the objects aforesaid have expressed their willingness subject to the consideration of the Council obtaining the enactment in the Bill of such provisions as will enable them to exercise the necessary powers for the said purposes to grant to the Council and their successors in perpetuity free of all cost or charge therefor an equal moiety of the whole flow of the thermal or mineral waters issuing from the Grotto Spring belonging to them known as "the Royal Well" Matlock Bath :

And whereas the Council for the purposes aforesaid seek to be authorised in Part IV. of the Bill to acquire lands and to erect thereon a pump room and baths and to equip and furnish the same with all necessary pumps fountains pipes fittings apparatus conveniences and works necessary therefor with baths pavilions concert reading and other rooms mentioned in the said Part of the Bill and to exercise other the powers in reference thereto contained in the said clauses of the Bill :

And whereas the Company have also expressed their willingness subject to the enactment in the Bill of the said provisions to take on lease from the Council or to undertake for and on behalf of the Council the management of the said pump room baths and other rooms if the Council shall require them so to do during the term herein-after mentioned subject in all respects to the terms conditions and stipulations herein-after set forth :

And whereas the Company are seised in fee simple subject as next herein-after mentioned of certain pieces or parcels of land and hereditaments together with the messuage known as the Royal Hotel and other the messuages and buildings erected thereon situate at Matlock Bath aforesaid :

And whereas by an issue of ten first mortgage debentures each securing a sum of one thousand pounds and each issued and made payable

A.D. 1905. to the said Leolin Brigg and given under the common seal of the Company on and dated the 8th day of April 1904 the Company thereby charged with the payment of all principal and interest moneys secured thereby their undertaking and all their property present and future including their uncalled capital :

And whereas by a further issue of fifty second mortgage debentures each securing a sum of two hundred pounds and each issued and made payable to the said Carlos Vetter and given under the common seal of the Company on and dated the 16th day of November 1904 the Company further charged with the payment of all principal and interest moneys secured thereby their undertaking and all their property present and future including their uncalled capital subject only to the prior charge of the said first mortgage debentures :

And whereas the said Leolin Brigg and Carlos Vetter as such debenture holders as aforesaid have agreed to consent to the Company granting to the Council and their successors in perpetuity an equal moiety of the whole flow of the thermal or mineral waters as aforesaid :

Now therefore this agreement witnesseth that the Council for themselves and their successors do hereby agree with the Company their successors and assigns as follows (that is to say) :—

1. The Council shall take all steps usual and necessary and shall use their best endeavours to obtain the approval of both Houses of Parliament and procure the enactment in the Bill of Part IV. thereof and the clauses therein contained substantially as set forth in the Bill or in such other form as may be approved by Parliament or as may be varied amended or supplemented by agreement between the Council and the Company and also of a clause confirming this agreement which shall be scheduled to the Bill.

2. The Company shall in compliance with all reasonable requests of the Council use their best endeavours to assist the Council in procuring the approval of Parliament to and the passing of the Bill and particularly the enactment therein of the clauses mentioned in clause 1 of this agreement.

3. In the event of the Bill becoming passed into an Act and within three months next after the date of the Royal Assent thereto the Company shall grant to the Council in perpetuity as the beneficial owners thereof an equal moiety of the whole flow of the thermal waters issuing from the Grotto Spring at Matlock Bath known as "the Royal Well" belonging to the Company and the Council shall pursuant to such grant thereafter become entitled in perpetuity to take and use for all the purposes of the pump room and baths aforesaid for which they may be authorised pursuant to the provisions of any powers in that behalf granted to them the said moiety of the said flow of the thermal waters from such Royal Well free from compensation rent rentcharge purchase money or any payment therefor whatsoever and the Company on the like terms shall also grant to the Council for the right of entry on to and an easement in and over all such other land as may be necessary to enable the Council to erect maintain repair and uphold all pipes and other works necessary for taking away and conducting

to the said pump rooms the said thermal waters and the Council shall at their own expense and in accordance with plans to be submitted by them to and reasonably approved by the Company erect all such pipes conduits valves weirs and other works and conveniences as may be requisite and necessary and shall thereafter effectually maintain the same in a proper state of repair to the reasonable satisfaction of the Company.

A.D. 1905.

4. In the event of the Bill being passed into an Act containing substantially the provisions aforesaid the Council shall thereafter at their own expense acquire such lands as may be requisite for the said purposes and in accordance with plans which shall previously be submitted to and reasonably approved by the Company shall as may be agreed between the Council and the Company erect thereon the pump rooms baths pavilions refreshment assembly reading concert and other rooms pursuant to the provisions of the Act aforesaid and efficiently and suitably equip and furnish the same having regard to the purposes for which the same are authorised or intended to be used provided that the outlay contemplated for all the purposes of clauses 3 and 4 of this agreement does not exceed a total amount of 10,000*l*.

5. The Council shall if they think fit so to do from time to time lease to the Company the said pump room and baths and other rooms and lands connected therewith on such terms and conditions as may hereafter be mutually agreed provided that the duration of any lease so granted shall not exceed ten years and that the net rent to be received by the Council free of all deductions be not less than a sum equal to 6*l*. per centum per annum on the said sum of 10,000*l*. or any less amount which may be expended in carrying into effect all the purposes of clauses 3 and 4 of this agreement.

6. The Company shall if the Council require them so to do undertake for and on behalf of the Council the administration management working or otherwise of the said pump room baths and other rooms and lands connected therewith on such terms and conditions as may hereafter be mutually agreed provided that in such case the duration of such arrangement shall not exceed ten years and provided that such payment shall be made by the Company to the Council of a sum equal to 6*l*. per centum per annum on the said sum of 10,000*l*. or on any less amount which may be expended in carrying into effect all the purposes of clauses 3 and 4 of this agreement.

7. Any difference or dispute which may arise under or out of any of the provisions of this agreement including the settlement of any of the grants or agreements or any terms thereof herein-before mentioned shall be submitted to and settled by a counsel to be agreed or in default of agreement nominated by the Local Government Board as arbitrator upon the application in writing of either the Council or the Company.

8. The said Leolin Brigg and Carlos Vetter as such debenture holders as aforesaid do hereby respectively consent testified by the signing of these presents to the Company granting to the Council and their successors in perpetuity an equal moiety of the whole flow of the thermal or mineral waters as aforesaid.

9. The costs charges and expenses incurred by the Company in the preparation and execution of this agreement in duplicate as well as the

A.D. 1905. costs of the subsequent preparation and execution of the several grants and agreements therein mentioned pursuant to the provisions hereof shall be borne and paid by the Council as part of the costs incurred in promoting the Bill.

10. This agreement is made subject to the approval of Parliament and to any alterations which either of the Houses of Parliament may think fit to make herein and if from any cause whatsoever the Bill shall not receive the Royal Assent this agreement shall except as to the provision for payment of costs by the Council as provided in clause 9 hereof become null and void and cease to be binding either upon the Council or the Company.

As witness the hands of the said Leolin Brigg and Carlos Vetter and the respective common seals of the Company and the District Council the day and year first before written.

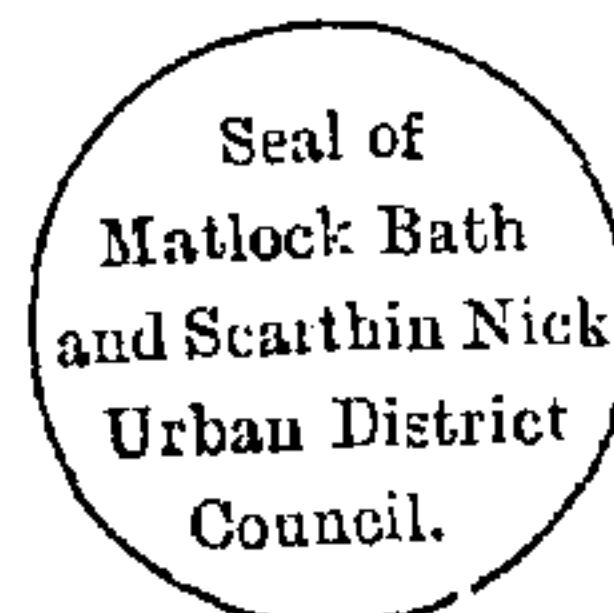
LEOLIN BRIGG.
C. VETTER.

V. EGGENA
SYDNEY HARVEY } Directors.

WM. J. NINNES
Secretary.

H. BUXTON
Vice-Chairman.

F. C. LYMN
Clerk.



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